

Introductory Lawyering Skills

Continuation from Week 2
Introduction to Problem Solving

Questions from Asynchronous Class?



WHAT WAS THE PROBLEM IN *KAPAHI REAL ESTATE INC?*

- What did the respondent say had happened?
- What was the court's view of the explanation?
- What did the court do in response?

What might the LSO be concerned about?

LSO Rules Relevant to Generative AI Use

Based on the LSO practice resource, Generative AI: [Your Professional Obligations \(April 10, 2024\)](#)

Duty	Rules of Professional Conduct	What it means for AI use
Competence	Section 3.1	Understand an AI tool's capabilities and limitations before relying on it; independently verify any AI-generated output.
Confidentiality	Section 3.3	Don't input confidential or privileged client information into an AI tool unless it's adequately safeguarded or the client has consented.
Honesty and Candour	Rule 3.2-2	Tell clients when AI use may affect the outcome, cost, or risk profile of their matter.
Supervision	Sections 6.1 and 6.2	Treat AI output like work from a non-licensee employee — delegate deliberately and validate what it produces.
Reasonable Fees and Disbursements	Section 3.6	AI-related costs passed on to clients must be fair, disclosed in advance, and billed at actual (not estimated) cost.
Not Misleading the Tribunal	Section 5.1	Independently verify AI-generated case law, citations, and evidence before filing — hallucinated authorities are a live risk.

Where does AI fit in your skills development?

- What are the concerns raised in the AI Trap article excerpt assigned for today?
 - How does cognitive science and psychology research suggest expertise is developed?
 - What is the Competence Illusion and what gap does it create?
 - Where does the Gap become apparent?
- Question to ask if considering AI: Could I do this task competently if AI were unavailable right now? If the answer is no, there is a skill gap.

Check in on Research and Citation Sources

Westlaw

- Individual vs York-Wide
- Both contain the *McGill Guide*
 - We will also look at other citation sources later in the term, but the *McGill Guide* is our base

Lexis

- Individual vs York-Wide

NOTE THE RELEVANCE OF PROCEDURAL RULES

- In *Kapahi Real Estate*, the court referenced the *Rules of Civil Procedure*.
- In *AB v Toronto Catholic District School Board*, the Tribunal applied rule 19A of the *Tribunal Rules of Procedure*.

Preparing for
Problem-Solving
- Returning to
Stare Decisis

- How do the concepts of "certainty" and "justice" (or "correctness") create a fundamental tension within the doctrine of *stare decisis*?

Departing from stare decisis?

- What is the significance of the *Bedford/Carter SCC* approach to vertical *stare decisis* in constitutional cases for lower courts?
- What are the specific conditions under which a trial judge may reconsider an otherwise binding higher court precedent?

Reconsideration of *Stare Decisis*: When can trial courts depart from higher court decisions? (At least for *Charter* Cases)

- 41 Before turning to the Charter claims, two preliminary issues arise: (1) whether this Court's decision in Rodriguez can be revisited; and (2) [omitted]
- 44 The doctrine that lower courts must follow the decisions of higher courts is fundamental to our legal system. It provides certainty while permitting the orderly development of the law in incremental steps. However, stare decisis is not a straitjacket that condemns the law to stasis. Trial courts may reconsider settled rulings of higher courts in two situations: (1) where a new legal issue is raised; and (2) where there is a change in the circumstances or evidence that "fundamentally shifts the parameters of the debate".
- *Carter v Canada (AG)*, 2015 SCC 5 at paras 42, 44.

Problem Solving Steps

Problem solving in law requires comprehension of these concepts:

- Material facts
- Legal/Factual issues
- Statutory Analysis
- Case law analysis
- Application of legal sources to facts & issues

Material Facts: Who, What, Where, When, & Why

Initial fact-finding is critical to moving forward with other problem solving tasks



Issue Identification

- Legal Issue = key fact + legal concept & question format.
- Example: Does the owner of a dog who jumped in front of a motorcycle owe a duty of care to the injured motorcycle driver and passenger?

Working with Facts & Issues



Note:

Primary legal sources = statutes,
legislation

Secondary legal sources = sources which
describe the above

- ❑ Conduct initial research
- ❑ Then revisit issues & facts to assess
relevance

- Identify the Relevant Primary
Law: Conduct Research

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Material Facts Exercise

- Material Facts
 - Who?
 - What?
 - When?
 - Where?
 - Why?
- Legal Questions/Issues
- Legal principles
- Area(s) of Law

Quiz Particulars

- ❑ [Open Book] Quiz Opens at 4 pm on Friday, Sept 18 and closes at 8:30 am on Friday, Sept 25
- ❑ There will be 12 questions. [T/F, multiple choice, fill in the blanks ...]
- ❑ You will have 15 minutes to complete the quiz once you have begun.
- ❑ The quiz is worth 6 marks

Sample Question

The following is describing the presumption against : "It is presumed that the legislature avoids superfluous or meaningless words, that it does not pointlessly repeat itself or speak in vain."

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mootness
hypocrisy
tautology

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Sample Question #2

According to Parkes, what doctrinal principle did the Supreme Court use as the "hook" to justify a more flexible approach to the vertical convention of precedent specifically in constitutional cases?

- ☐ a. The doctrine of anticipatory overruling
- ☐ b. The Charter's preamble reference to the "rule of law"
- ☐ c. Constitutional supremacy (the idea that stare decisis cannot require a court to uphold an unconstitutional law)
- ☐ d. The principle of judicial economy